FIDELITY LIFE ASSURANCE COMPANY OF ZIMBABWE LIMITED
versus
CFI HOLDINGS LIMITED
and
LANGFORD ESTATES (1962) (PRIVATE) LIMITED
and
CREST POULTRY GROUP (PRIVATE) LIMITED
and
CBZ BANK LIMITED
and
FBC BANK LIMITED
and
AGRICULTURAL BANK OF ZIMBABWE LIMITED
and
INFRASTRUCTURE DEVELOPMENT BANK
and
STANDARD CHARTERED BANK OF ZIMBABWE (now FBC CROWN BANK LIMITED)
and
THE REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 5 & 16 June 2026

Opposed Application

T R Mafukidze, for the applicant
T Mpofu, for the 1st & 3rd respondents
No appearance for the 2nd and 4th-9th respondents

DEMBURE J:

INTRODUCTION

[1] This is a court application for the setting aside of an irregular step. The application is made in terms of r 43(1) of the High Court Rules, 2021. The applicant seeks an order that the summons in case number HC 4056/18 be deemed lapsed, that the first to third respondents' filing of Supplementary Discovery affidavit and Discovery schedule on 3 November 2025 be set aside as irregular pleadings and that the said respondents pay costs

of this application jointly and severally, the one paying, the other to be absolved. The application is only opposed by the first and third respondents. On 5 June 2026, the court, with the consent of the parties, adopted a rolled-up approach, that is, I heard submissions on the two points *in limine* raised by the two respondents and the merits of the matter.

THE BACKGROUND

[2] The parties have been embroiled in action proceedings instituted in case number HC 4056/18. The first to the third respondents, as the plaintiffs, sued out a summons against the applicant herein and the fourth to the ninth respondents, as the defendants, on 3 May 2018. They are seeking a *declaratur* and consequential relief. The dispute therein is centred on the debt assumption and compromise agreement entered into between the parties on 30 June 2015, which the said respondents (as the plaintiffs therein) contend was invalid for want of the approval of the shareholders of the first and second plaintiffs in terms of the then Companies Act [*Chapter 24:03*].

[3] The applicant, together with the fifth, sixth, and seventh respondents, entered their appearances to defend and also filed their pleas. The first to third respondents (*"the respondents"*) replicated on 9 October 2020. The filing of that pleading marked the closure of pleadings. They further filed their Pre-Trial Conference (*"PTC"*) Minute on 2 December 2020. The plaintiffs also filed their Discovery Affidavit on 22 June 2022. There is no dispute that they later filed a notice of set down for a PTC on 4 June 2025. Subsequent to that notice, their legal practitioners wrote a letter to the defendants' legal practitioners inviting them to a PTC between the parties.

[4] It is clear from the pleadings that the applicant's legal practitioners rejected the invitation. The basis of their objection was that the summons had lapsed in terms of the Practice Direction No. 1 of 2022 (*"the Practice Direction"*). The said Practice Direction took effect on 24 March 2022. The plaintiffs' legal counsel in their letter dated 18 July 2025 contended that the applicant's position that the Practice Direction was applicable was erroneous. In their view, it was inapplicable to their claim, which had reached litis contestation, and they insisted on proceeding further with the matter in terms of the law.

Thereafter, on 3 November 2025, the respondents filed a Supplementary Discovery Affidavit and a Discovery schedule. The applicant objected to this filing.

[5] The applicant issued a notice in terms of r 43(1) that an irregular step had been taken and demanded that the respondents remove the cause of complaint within 10 days of the date of service of the notice. The complaint was premised on the basis that the summons having lapsed in terms of the Practice Direction No. 1 of 2022, the filing of the Supplementary Discovery affidavit and Discovery schedule was an irregular step. The notice was issued on behalf of the first defendant (the applicant herein) and the second to the fifth defendants in the said matter. The respondents filed a notice of response on 18 November 2025. They contended that filing those PTC documents did not constitute an irregular step. That the relief sought impacts the entire proceedings, and not the step allegedly taken, and was not contemplated by the provisions of the rules invoked. They also argued that the complaint had not been brought within the period set out in r 43(2)(b) and was an abuse of court process.

[6] On 17 December 2025, this application was lodged. The applicant insists that the summons has lapsed in terms of the Practice Direction No. 1 of 2022. That the respondents made an irregular step by filing the documents more than two years after the discovery affidavit was filed. It was averred that they cannot file any further documents or take any further steps as the summons has lapsed.

[7] The respondents raised two points *in limine*, namely that the application was invalid as it was filed out of time and without the applicant having sought and obtained condonation, and secondly, that the application is bad in law. On the merits, they insisted that the application was an abuse of court process as the Practice Direction does not apply to the matter, which had reached *litis contestatio*. They maintained that the summons was valid and that the issue ought to have been taken in June 2025, when the notice of set down and the invitation for the parties to hold a round table conference were filed.

[8] In its answering affidavit, the applicant reinforced its position set out in the founding affidavit. It further averred that the filing of a notice of set down is not a further step as contemplated by the law, and that only the filing of the documents in question triggered

the provisions of r 43(1). It also contended that the Practice Direction is applicable to all matters that were pending before the court when the Practice Direction took effect, including the respondents' summons. They persisted with the prayer as set out in the founding affidavit.

I turn to deal with the preliminary points first.

THE FIRST POINT *IN LIMINE*

WHETHER OR NOT THE APPLICATION WAS FILED OUT OF TIME

[9] The first point taken is that the application is improperly before the court or invalid as it was filed outside the period provided for in terms of r 43(2)(b). Mr *Mpofu* argued that this court is bound by its rules and ought to ensure that those rules are faithfully observed. He further submitted that r 43(2) says that if in the course of proceedings a step is taken and a party considers it to be irregular, that party must (and this is a precondition to the validity of an application) within 10 days of becoming aware of the step by written notice afford the other side the opportunity to remove the cause of complaint. Secondly, you then file your application within 12 days. You have combined 22 days in which to do so. We have a litigant who says the summons has lapsed. The application is not brought within the period set out by law. This issue is dealt with in para(s) 2.1 to 2.4 of the heads of argument at p 67 of the record.

[10] It was argued in the heads of argument that a dispute between the parties arose in June 2025 as a result of the Directive. That the applicant ought to have brought these proceedings within 22 days of that dispute arising, but failed to do so. The application was brought only on 17 December 2025, out of time. If you have not complied with the rules, you must seek condonation. No condonation was sought, making the application incompetent.

[11] On the other hand, Mr *Mafukidze* submitted that the application was brought in terms of the period stated in the rules. He went on to submit as follows. The respondents refer to a letter inviting the parties to a round table conference, but that letter is not a step as defined in *BMW Financial Services (Pty) Ltd* v *Doola* [2025] 2 All SA 107 (GP). The invitation to a round table conference does not advance the process to completion and

does not prejudicially affect the applicant. The same applies to a notice of set down. The rights of the applicant are affected by the filing of the Supplementary Discovery affidavit in the context of the litigation. It is that which constituted an irregular step. The notice was issued on time, and the application was brought within 12 days after the expiry of the notice period of 10 days. There is nothing that was brought out of time. The application was brought in time in terms of the rules.

ANALYSIS

[12] The period within which an application to set aside an irregular step taken by a party to a cause is provided for under r 43(2)(b) and (c). The relevant provisions state as follows:

> "2) An application in terms of subrule (1) shall be on notice to all parties specifying particulars of the irregularity or impropriety alleged, and may be made only if—
>
> (a) the applicant has not himself or herself taken a further step in the cause with knowledge of the irregularity;
>
> (b) the applicant has, within ten days of becoming aware of the step, by written notice afforded the other party the opportunity of removing the cause of complaint within ten days;
>
> (c) the application is filed within twelve days after the expiry of the second period mentioned in paragraph (b) of this subrule." (*my emphasis*)

There are three periods related to in r 43(2)(b) and (c). The first period of 10 days applies from the date a party becomes aware of an irregular step being taken. The notice must be issued within 10 days of becoming aware of the irregular step. The second period of 10 days comes in from the date the notice is served. It is the time the other party is given an opportunity to remove the cause of the complaint. Once that period expires without the cause of the complaint being removed, the third period of 12 days within which the application for the setting aside of the irregular step or proceeding must be filed with the court is brought into effect.

[13] The rules clearly relate to what the other party considers to be an irregular step taken. It does not matter at that stage whether or not that view is correct. Therefore, the fact that the respondents previously filed a notice of set down or invited the applicant to a round table conference in June 2025 is not the issue. The stipulated time prescribed in r 43(2)(b) is triggered only upon a party becoming aware of the taking of an irregular step. The

argument as to whether it is a further step or whether the step can be regarded as irregular or improper would be irrelevant to the question of whether or not the application was filed within the prescribed period in terms of the rules of court. In other words, the question with respect to the point *in limine* is not necessarily whether the applicant is correct to say that the irregular step was the filing of the Supplemental Discovery affidavit and Discovery schedule on 3 November 2025, or that it ought to have been the invitation to a PTC or the filing of the notice of set down in June 2025. That issue does not arise in considering the time within which the application is filed.

[14] In this case, the applicant took the view that the filing of the Supplementary Discovery affidavit and Discovery schedule on 3 November 2025 was an irregular step, as the summons had lapsed. The first period of 10 days is then triggered by the knowledge of the irregular step taken. Whether or not this was correctly an irregular step is neither here nor there. There is no dispute that the applicant became aware of the filing of those documents on the same date. The notice in terms of r 43(2)(b) for the respondents to remove the cause of the complaint was issued and served on 17 November 2025, which was within the 10 days of becoming aware of the alleged irregular step.

[15] The respondents had up to 1 December 2025 to remove the cause of the complaint. They objected to the notice on 18 November 2025, and the second period of 10 days expired without the cause of the complaint being removed. Upon expiry of the 10 days giving the respondents the opportunity to remove the cause of the complaint on 1 December 2025, this application had to be filed within 12 days thereafter. That period lapsed on 17 December 2025. This application was filed on 17 December 2025, the last day allowed by r 43(2)(c) for the filing of the application. Clearly, the application was filed within the period set out in the rules of court. The point that the application was filed out of time is, therefore, without merit. It is hereby dismissed.

THE SECOND POINT *IN LIMINE*

WHETHER THE APPLICATION IS BAD IN LAW

[16] It was the respondents' contention that the application is bad in law in that r 43 only deals with the taking of an irregular step in proceedings whose validity is not in issue. That rule

is not a procedural tool available to a party who believes that there are no valid proceedings before the court. Mr *Mpofu* argued that the simple rule of law is that an application stands or falls on its founding affidavit. He further submitted that the applicant sets out the basis of its application in para 15, stating that this is an application to set aside an irregular step and that the first to third respondents' summons lapsed in terms of the Practice Direction No. 1 of 2022. That is contradictory.

[17] Counsel further quoted r 43(1) and submitted that the architecture of this rule is that there must be a cause. In that cause, there must be an irregular step that is taken. The rule gives the party the right to set aside an irregular step. This is not what the application seeks. Once the applicant's position is to query the proceedings themselves, then it must seek other relief, not the relief that it seeks. We are bound by what the applicant has set out to do. The application is bad in law. It does not engage the workings of the Practice Direction on the basis upon which the application is purportedly being brought. For that reason, the application ought to be dismissed.

[18] It was also argued that the Practice Direction deals with inactive summons. There is a difference between summons and action proceedings. The provision is for the lapsing of summons. Paragraph 2.1 relates to summons not served within two years of being issued or having been served, one has not done anything further. The summons that is subject to *litis contestatio*, either in terms of the rules or the Practice Direction, cannot lapse. It was further argued that this application is an abuse of court process, which ought to be dismissed with costs on a legal practitioner and client scale. Counsel argued that it is an unnecessary detour from the main proceedings.

[19] Conversely, Mr *Mafukidze* submitted that the point *in limine* raised simply says that the application is bad in law, and they argue that the filing of subsequent pleadings after *litis contestatio* does not trigger the r 43 application. This is wrong. If you file subsequent proceedings after your summons has lapsed, it is an irregular step. I was referred to the case of *Bloem & Anor* v *NWK Ltd* ZANWHC 83 [2024], where it was held that the court has wide discretion to set the irregular step or proceeding aside in whole or in part, or to make any order it may deem fit. The Practice Direction applies to all matters and came

into effect in 2022. It sets a period of two years, or if no further steps are taken, the summons shall lapse. The Registrar can secure the extension of the period. The filing of the documents in question is an irregular step as the summons lapsed. An irregular step rule is about a step taken. There is no dispute that a step was taken. Rule 43(3) and (4) show that an application can be made to set aside the irregularity in this case. The application is good in law.

EXAMINATION

[20] An application to set aside an irregular step is made in terms of r 43. The said provisions read:

> "43. (1) A party to a cause in which an irregular step has been taken by the other party may apply to court to set it aside.
>
> (2) An application in terms of subrule (1) shall be on notice to all parties specifying particulars of the irregularity or impropriety alleged, and may be made only if ….
>
> (3) If at the hearing of such application the court is of the opinion that the proceeding or step is irregular or improper, it may set it aside in whole or in part, either as against all the parties or as against some of them, and grant leave to amend or make any such order as it considers fit." (*my emphasis*)

It is critical to appreciate that a reading of subrule (1) of r 43 shows that an irregular step is taken by a party to a cause. Again, in subrule (3), the court, on hearing the application, considers if the proceeding or step is irregular and, if so, sets it aside in whole or in part and grants leave to amend or make any order it considers fit. Clearly, from these provisions, an irregular step concerns a proceeding or step taken in a matter that is still live or valid. In other words, there must exist valid proceedings for a step to be taken therein which the other party may consider to be irregular or improper. Thus, r 43(1) is invoked against an irregular step taken in valid proceedings or cause before the court. This is clear from the judgment cited by Mr *Mafukidze*, the *BMW Financial Services* case (*supra*), para 18, where LE GRANGE AJ held that:

> "…[A]n 'irregular step', as contemplated in rule 30(1), must be a procedural step which is taken in disregard of the rules, advances the process closer to completion and prejudicially affects the innocent party's rights in the future conduct of their litigation".

[21] This same position was buttressed in *Bloem & Anor* (*supra*), where PETERSEN J para(s) 9-10, related to the similar rule to our own r 43(3), and held as follows:

> "…Any complaint raised in terms of Rule 30 therefore speaks to an alleged procedural irregularity in the conduct of the litigation. It therefore follows axiomatically that if a court finds that the procedural steps taken by a party were irregular, a court is vested with wide powers to either set aside the proceeding in its entirety or in part or make any other order the Court may deem fit. The order which will generally follow in applications of this nature, if a court finds a particular step to be irregular, is to afford the party against whom the complaint is raised an opportunity to remove the cause of complaint."
>
> [10] Rule 30 envisages that any irregular step complained of must cause prejudice to the party seeking to set it aside. It is accepted though, that even if a procedural step may be found to be irregular but if presents no prejudice in the further conduct of the case to the party complaining thereof, there would be no need to set it aside. See *Trans-African Insurance Co Limited v Maluleka* 1956 (2) SA 273 (A) at 276F-H." (*my emphasis*)

The law is, therefore, clear that what the court is called upon to set aside and which it may set aside is the proceeding or the step in whole or in part, and may allow for an amendment. It would only be the step or proceeding taken that is irregular, not the proceedings or the cause before the court. Rule 43(1) cannot be invoked where one challenges the validity of the entire proceedings or the cause itself.

[22] It is trite that an applicant stands or falls by the founding affidavit and the facts alleged therein. While a party may supplement the averments in the founding affidavit, the main basis of the application are the averments contained in the founding affidavit. See J. *C. Conolly & Sons* v *R. C. Ndhlukula & Anor* SC 22/18 p 17, para(s) 44-45. In para 15 of the founding affidavit, the nature of the application is pleaded as follows:

> "This is an application to set aside an irregular step in terms of rule 43(1) of the High Court Rules, 2021. The 1st to 3rd respondents' summons lapsed in terms of Practice Direction 1 of 2022."

[23] It was alleged that the summons lapsed and, therefore, the filing of a Supplementary Discovery affidavit and schedule constitute an irregular step. If the contention is that the summons has lapsed, then there is no cause or matter in which an irregular step can purportedly be taken. This makes the resort to r 43(1) wrong and bad in law. The applicant accepted the meaning of the word "lapse" as fully explained in *Minister of Law*

& Order & Ors v Zondi 1992(1) SA 468 (N) at pp 470-471, where THIRION J had this to say:

> "In *Dawood v Abdoola and Another* 1955 (2) SA 365 (N) at 368, SELKE J observed that the more usual meaning of the verb 'to lapse', in the parlance of the law, is 'to fall or pass away finally', but the learned Judge went on to hold that that word does not invariably convey the idea of finality and that in the statutory provision which he had to interpret, it was the equivalent of 'shall fall into abeyance', 'shall be discontinued'…
> In *Pietermaritzburg Corporation* v *Union Government* 1935 NPD 36 at 51, MATTHEWS JP said:
>
> > '"Lapse" is a term which can only mean to come to an end altogether. The meaning given by Webster's Dictionary to "lapse" when used in this sense is "to become ineffectual or void".'
>
> The meaning of an expression must depend to a large extent on the context in which it is used, but on the view which I take of Rule 10, its effect is to render a summons void at the expiration of the period of 12 months unless a further step has been taken in the prosecution of the action within that period and provided that the proviso to the Rule does not find application." (*my emphasis*)

[23] Once it is accepted that the meaning of the word "lapse" is to render a summons void, it follows that there is no matter or cause to relate to. There is nothing to talk about as an irregular step. Something that is void is incurably bad. The proceedings thereof would lack legal existence, and no step or proceeding can, therefore, be founded on it. Any proceeding or application founded on them would be equally void. It is trite that a nullity begets nothing valid. Thus, MUSAKWA JA in *Chiunga* v *AFC Commercial Bank Ltd* SC 02/26 at pp 10-11 made the following apposite remarks:

> "Where the proceedings are a nullity, any subsequent application founded upon them is equally void. This position was aptly stated in *The Garrat Trust* v *Creative Credit (Pvt) Ltd* SC 146/21 at p 6, wherein BHUNU JA noted the following with regards to null proceedings:
>
> > 'The leading case on the effect and import of void proceedings is *Mcfoy* v *United Africa Co Ltd*. In that case, Lord DENNING observed that:
> >
> > > 'If an act is void, then, it is in law a nullity. It is not only bad but incurably bad. There is no need for an order of court for it to be set aside. It is automatically null and void without more ado, although it is sometimes more convenient to have the court declare it to be so. **And every proceeding which is founded on it is also bad. You cannot put something on nothing and expect it to stay there. It will collapse.'** …
>
> On the basis of the law as articulated through the cases once the learned judge had taken the correct view that the main application upon which the counter application was founded was a nullity, he ought to have declared the application a nullity and stop there. Since the counterclaim was founded on a nullity it had no independent existence of its

> own. It would therefore have collapsed together with the main application as it was riding on the back of the main application…
> 28. The above authority reinforces the principle that since the order sought to be altered by the appellant was a nullity, the application for condonation was also a nullity." (*my emphasis*)

[24] The law is clear that where the contention is that the summons has lapsed it means there is no valid matter for which an irregular step may be taken or upon which one may also purport to make an application in terms of r 43. Given our legal position, the South African cases cited by Mr *Mafukidze* of *D & H (Pty) Ltd* v *Sinclair* 1971 (2) SA 157 (W) and *South African Druggists Ltd* v *Beecham Group PLC* 1987 (4) SA 876 (T***)*** are irrelevant to the determination of the issue before me. I accordingly agree that r 43(1) is not the procedural tool to utilise where one believes that the proceedings are no longer valid or do not exist. In other words, the rule is not available to a party who pleads that the summons has lapsed. It would be open to a party to properly take a point of law in those proceedings that would seek to have the matter struck off the roll, for there would be no cause between the parties to determine at a trial. Seeking to invoke r 43(1), presenting the argument that the summons has lapsed, would clearly be incompetent and bad in law.

[25] Further, in any case, the application is also bad in law as it does not properly engage the Practice Direction No. 1 of 2022. The applicant contends that, in terms of the Practice Direction, the summons had lapsed. The relevant para 2.1 thereof states as follows:

> "Lapsing of summons
>
> 2.1 If the summons in an action is not served within two years of the date of its issue or, <u>having been served, the plaintiff has not, within the time stipulated in the High Court Rules, 1971, taken further steps</u> to prosecute the actions, the summons shall lapse." (*my emphasis*)

It is now settled law that practice directions are a supplementary protocol to the rules of court. Although they are not rules, litigants are still required to comply with them. The legal status of a Practice Direction was explained in *Dube v Premier Service Medical Aid Society & Anor* SC 73/19, where it was stated that:

> "[23] A practice directive (or direction) is a supplementary protocol to rules of civil or criminal procedure in the courts – English Legal System, Nineteenth Edition, 2018.

> Practice Directives are official announcements by the court laying down rules on how it will function. They are not the same as rules of court but express the view of the court on matters of practice and procedure. Litigants and practitioners are expected to comply with them or show good cause for doing otherwise."

[25] A closer look at para 2.1 of the Practice Direction reveals two scenarios, taken disjunctively, as indicated by the use of the word "or". The first part relates to a situation in which the summons is issued but not served within two years of issuance. The summons shall lapse. The second part where the summons shall lapse is where the summons has been served, but no further steps are taken to prosecute the action within the time stipulated in the High Court Rules, 1971. The applicant conflated the period of two years in the first part with the second part. There is no doubt that in the main proceedings in case number HC 4056/18, service of the summons was effected on the defendants. In fact, when the Practice Direction was issued, the matter had reached *litis contestatio*.

[26] Arising from the second part under para 2.1, the summons may only lapse if, after service of the summons, no further steps are taken to prosecute the action within the time prescribed in the High Court Rules, 1971. The keywords are "within the time stipulated in the High Court Rules, 1971". Mr *Mafukidze* initially related two years from the first part to the second scenario, as if it applied. That period is specific to cases where the summons has not been served. It is not the time stipulated in the High Court Rules, 1971. When I queried exactly what time is stipulated in the High Court Rules, 1971, Mr *Mafukidze* accepted that those rules do not give a party two years to prosecute a matter that has reached *litis contestatio* before it lapses. He argued that the rules deal with stages of the litigation. In his opinion, since a period of three years had lapsed from the last stage the litigation was, from June 2022 to June 2025, the summons had lapsed. He did not refer me to any such time stipulated in those rules which would apply to the present matter.

[27] The correct position is that there is no time prescribed in the High Court Rules, 1971, in respect of the taking of further steps in the prosecution of a matter that has reached *litis constestatio*. It ought to be prosecuted further, but there is no time stipulated in those

rules that speaks to the respondents' matter, which had reached *litis contestatio* at the time the Practice Directive was issued, nor was there any requirement therein that it be prosecuted within a particular time or period. The Practice Direction cannot affect the respondents' matter in case number HC 4056/18. The matter cannot also be treated as an inactive summons that lapsed in terms of para 2.1. Clearly, therefore, the application was incompetent for failing to engage the Practice Direction. It was founded on an improper footing. Accordingly, the application is wrong and bad in law. The point *in limine* that the application is bad in law ought to succeed.

[28] The application being wrong and bad in law ought to be dismissed rather than struck off the roll. That would be the proper exercise of my discretion in the circumstances. This position was affirmed in *Ahmed* v *Docking Station Safaris (Pvt) Ltd t/a CC Sales* SC 70/18, where it was held as follows:

> "In view of these irregularities, I found it proper to dismiss the application instead of striking it off the roll. In *Mudyavanhu v Saruchera* SC 75/15 GWAUNZA JA (as she then was) stated that;
>
> > 'It is noted that a number of matters have been struck off the roll by this Court on the ground that the relief sought was not exact in nature and that as a result the related notice of appeal was incurably defective. See *Ndlovu & Anor v Ndlovu & Anor* (*supra*). **However, in this case, the court found that the appeal was not only incurably defective but wrong and bad in law. The appeal could therefore not properly be struck off the roll because the appellant had no avenue, legally or procedurally, to follow in case he was inclined to bring the same appeal before this Court**."
>
> The grave irregularities that accompany this application warrant a dismissal. The applicant`s draft order is fatally defective and the application as a whole is wrong and bad in law. This application can only be dismissed." (*my emphasis*)

COSTS

[29] There was a prayer for costs on a legal practitioner and client scale. Mr *Mpofu* submitted for the respondents that this application is an abuse of court process and an unwarranted detour from the main matter, where the point could have been properly taken. That the improper resort to r 43 has resulted in the respondents suffering unnecessary costs. Mr *Mafukidze*, however, argued that this is not an appropriate case for an award of costs on a punitive scale. He further stated that even if the court disagrees with the applicant's

position, there is no single case that has clarified the legal position in this jurisdiction. There is no abuse of court. The application was brought to enforce the rules of court. In his reply on the issue, Mr *Mpofu* insisted that it is not sufficient to say that there is no case dealing with a similar matter. These proceedings were unnecessary. The applicant ought to have taken a responsible position, as the rules are clear, but it did not.

[30] It is the settled position of the law that the issue of costs is within the discretion of the court. With respect to costs on a legal practitioner and client scale, the law is also settled that such costs are granted in exceptional circumstances. There must be evidence of abuse of court process. Accordingly, it may be justified for the court to mulct a party with costs on a legal practitioner and client scale where there is, *inter alia*, reckless or malicious proceedings, dishonest or fraudulent conduct of a litigant, and vexatious or frivolous proceedings by and on the part of the particular litigant. See *Takashinga Kare Pay Housing Scheme* v *City of Harare & Ors* SC 88/25 at p 16.

[31] In my view, while the dispute as to whether the summons has lapsed could have been properly dealt with in the main matter, I did not consider these proceedings to be reckless or an abuse of court process. It is common cause that the parties first had the dispute as to whether the summons has lapsed in June 2025. The applicant could not accept the invitation to attend a PTC between the parties as the parties differed sharply on the issue. The issue had to be resolved. That the applicant adopted the wrong procedure to address the issue does not necessarily make its conduct one deserving of an abominable award of costs. Parties must not be penalised for bringing what they believe to be genuine disputes that require resolution by the courts. Given that the areas in contention have not been canvassed sufficiently in any other cases in this jurisdiction to guide the parties, it would be unjust to penalise the applicant with an award of costs on a higher scale.

[32] The legal practitioners' interpretation of the law was erroneous, but I do not consider that conduct to be gross and unpardonable, warranting the court's expression of displeasure by an award of punitive costs. Lawyers do make mistakes as to the legal position and the correct procedure to adopt, but it does not follow that the court must penalise them and, invariably, their clients, in all cases. Each case would depend on its own circumstances.

While the absence of case law on the issues in question may not be a licence to be reckless, I did not consider these proceedings to be outside the bounds of responsible litigation. I am accordingly not satisfied that costs on a punitive scale would be warranted in this case. This is a proper case for the wasted costs to be borne by the applicant on the ordinary scale. There is no reason to depart from the general rule that costs should follow the cause.

DISPOSITION

[33] This application is wrong and bad in law. Rule 43(1) is only invoked where an irregular step or proceeding is alleged to have been taken in what a party believes are valid proceedings. As that rule states, there should be a cause. If the cause of the complaint is that the summons has lapsed, it simply means that the action is no longer validly before the court. The resort to r 43(1) would be inappropriate as no step can arise in a matter which does not legally exist. Paragraph 2.1 of the Practice Direction No. 1 of 2022 was not properly invoked in respect of the matter in case number HC 4056/18. In any case, the objection that the summons has lapsed could have been properly raised as a point of law in those proceedings. This application ought to be dismissed.

[34] It is ordered as follows:

The application be and is hereby dismissed with costs.

DEMBURE J:……

Dube, Manikai & Hwacha, applicant's legal practitioners
Nyawo Ruzive Attorneys, first and third respondents' legal practitioners